Data Processing Addendum (DPA) incl. SCCs

1. Roles & Scope

Client is the Controller; [PROVIDER LEGAL NAME] is the Processor. This DPA governs processing of personal data of Client's employees, contractors, and dependants in connection with the Autonomous HRO Agentic Platform, and forms part of the MSA dated [DATE].

2. Details of Processing (Annex I)

Categories of data subjects: employees, former employees, candidates, dependants. Categories of data: identification, employment, compensation & payroll, benefits, absence & leave, [SPECIAL CATEGORIES IF ANY — health, works council]. Duration: term of the Agreement plus [RETENTION PERIOD]. Purpose: provision of HR operations services.

3. Processor Obligations

Process only on documented instructions; ensure confidentiality commitments; implement technical and organisational measures per Annex II; assist with data-subject requests within [SLA]; notify personal-data breaches without undue delay and within [72 HOURS / CONTRACTUAL WINDOW]; delete or return data on termination.

4. Subprocessing

Client provides general authorisation for subprocessors listed in the Subprocessor List at [URL]. Provider gives [NOTICE PERIOD, e.g. 30 days] notice of changes; Client may object on reasonable data-protection grounds.

5. International Transfers (SCCs)

Where data is transferred outside the [EEA/UK/OTHER], the parties incorporate the EU Standard Contractual Clauses (Module 2, Controller-to-Processor) / UK IDTA as applicable. Data residency commitment: primary processing in [AZURE REGION(S)]. [TRANSFER IMPACT ASSESSMENT REFERENCE].

6. AI Processing Terms

Client Data is not used to train foundation models. Model inference occurs within [AZURE OPENAI REGION / TENANT BOUNDARY]. Prompt and completion logs are retained for [PERIOD] for abuse monitoring and quality, then deleted. [ADJUST TO ACTUAL MODEL-PROVIDER TERMS].

7. Security Measures (Annex II)

Encryption in transit and at rest; tenant isolation per subscribed tier; role-based access; Entra ID identities for humans and agents; audit logging; annual penetration testing; [CERTIFICATIONS: SOC 2 TYPE II, ISO 27001].

8. Signatures

Controller: _____ Date: [DATE]
Processor: _____ Date: [DATE]

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